



United Nations
Educational, Scientific and
Cultural Organization

Ref.: CL/4309

Subject: **10th consultation on the implementation of the 1960 Convention
and Recommendation against Discrimination in Education**

Sir/Madam,

The right to education for all is one of the major challenges we face today.

So, ten years out from the target date for achieving the Education 2030 agenda as part of Sustainable Development Goal 4, some 258 million children and young people were still out of school worldwide in 2018.

The 1960 Convention and Recommendation against Discrimination in Education, major global normative instruments protecting the right to education, reflect UNESCO's mission which, according to its Constitution, is to "*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social.*"

Under Article VIII of UNESCO's Constitution, Member States are required to submit regular reports on the measures they have taken to implement the conventions and recommendations adopted by the Organization.

We are therefore launching the tenth Consultation on the implementation of the 1960 Convention and Recommendation, and I invite your government to prepare a national report covering the 2017-2020 period. To assist your authorities in this regard, please find enclosed the Guidelines for the preparation of reports.

Please note that the Recommendation is monitored in conjunction with the Convention and the reporting obligation for both instruments is the same, therefore all Member States, including non-State Parties to the Convention, need to submit a report.

Member States are encouraged to organize the necessary consultations including with relevant civil society organizations and other key stakeholders.

The detailed arrangements for the submission of reports will be communicated to the Permanent Delegations to UNESCO.

The report should be submitted **no later than 30 June 2020**, in order for the Secretariat to prepare an analytical global report and submit it to UNESCO's governing bodies in October and November 2021.

Please accept, Sir/Madam, the assurances of my highest consideration.

Audrey Azoulay
Director-General

Enclosures: 1

– Guidelines for preparation of national reports

cc: Permanent Delegations to UNESCO
National Commissions for UNESCO
Regional Offices
Field Offices

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by UNESCO's Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education ("the Convention") and the Recommendation against Discrimination in Education ("the Recommendation"), adopted by UNESCO's General Conference in 1960, respond to UNESCO's constitutional mandate to "advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social". The Convention is the first legally binding international instrument providing for the right to education and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG 4) adopted by the international community. SDG 4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG 4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

GENERAL INFORMATION:

Country name: Japan

Organization or entity responsible for the preparation of the report: Ministry of Education, Culture, Sports, Science and Technology (MEXT)

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☐ Yes

☒ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☒ No, not considering ratification in the near future. Please explain why:

In Japan, the opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations.

² http://portal.unesco.org/en/ev.php-URL_ID=12949&URL_DO=DO_TOPIC&URL_SECTION=201.html

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

In Japan, the opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations.

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☐ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☒ Yes ☐ No

³ http://portal.unesco.org/en/ev.php-URL_ID=15321&URL_DO=DO_TOPIC&URL_SECTION=201.html

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

The Article 4.1 of the Basic Act on Education (enacted in 1947, revised in 2006) of Japan stipulates that “the nationals shall all be given equal opportunities to receive education according to their abilities, and shall not be subject to discrimination in education on account of race, creed, sex, social status, economic position, or family origin.”

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

In Japan, the opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum

☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

In Japan, there is no stipulated condition for school admission based on race, colour, sex, language, religion, political or other opinion, national or social origin, economic condition or birth. Under this fundamental term, the Government of Japan provides the system of financial assistance for compulsory education expenses to persons requiring public assistance. For upper secondary education, the High School Tuition Support Fund offers tuition support for all high school students fulfilled with specific requirement. The government also supports reductions or waivers of tuition and enrolment fees conducted by universities and provides students financial assistance as one of the educational policies through scholarship grant* and loan programmes in higher education.

*The Scholarship grant programme is a system expanded from April 1, 2020.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken: *This notably is covered under SDG target 4.1 and partly target 4.b⁶*

The Article 4.1 of the Basic Act on Education (enacted in 1947, revised in 2006) stipulates that “the nationals shall all be given equal opportunities to receive education according to their abilities, and shall not be subject to discrimination in education on account of race, creed, sex, social status, economic position, or family origin.” The opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|--|
| <ul style="list-style-type: none"> ☒ Providing financial incentives and fellowships ☐ Providing positive or affirmative action measures | <ul style="list-style-type: none"> ☐ Providing auxiliary assistance ☒ Adapting education infrastructure ☒ Adapting curricula and methods |
|--|--|

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

- | | |
|--|---|
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Providing language classes to newcomers (e.g. refugees) |
| ☐ Training teachers on inclusive education | ☐ Eliminating administrative barriers to education ⁷ |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Providing flexible learning pathways |
| ☒ Providing re-entry programmes for young mothers | ☐ Valuing diversity in schools |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Combatting stereotyping and stigmatisation |
| ☐ Other: | |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Promoting development of life planning education programme and teacher training programme to foster raising awareness of gender equality from the stage of primary and secondary education so that young people who will lead the next generation can voluntarily select diverse careers without the undue conscious of fixed gender roles;

With a view to promoting the participation of the society for women of various ages, Japan is working with relevant institutions to develop and disseminate the learning programme models, including rising their awareness and improving its consultation systems, in order to comprehensively support their further and diverse careers.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

In June 2018, the partially amending Act of the Civil Code of Japan was passed, which includes raising the minimum marriage age of women from 16 to 18 years old, setting to unify its age for both sexes. This Act shall come into effect as from April 1, 2022.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Pre-primary education is not compulsory in Japan.

■ Pre-primary education is free of charge for all: Please provide the duration:

Since October 2019, it has been accessible free of charge for all 3-5 years old children to take early childhood education such as in Kindergartens, Day Care Centres and certified Centres for Early Childhood Education and Care in Japan. The policy regarding free pre-primary education for 0-2 years old children has been targeted to households exempted from inhabitant tax.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

Based on the New Economic Policy Package (decided by the Cabinet on 8 December 2017) and the Policy for Instituting Free Early Childhood Education (approved by the Cabinet on 28 December 2018), calling for the reduction of the cost burden for early childhood education and care, from the perspective of countermeasures for the falling birth rate, as well as recognizing the importance of pre-primary education for nurturing the foundation for compulsory education and the formation of character throughout the lifetime, the Child and Childcare Support Act was revised (Act No. 65 of 2012) in May 2019. This revision would be achieved the provision of free early childhood education and care from October 2019.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

■ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

⁸ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

The Basic Act on Education and the School Education Act of Japan stipulate that the nationals shall be obligated to have children under their protection receive nine-year general education from the ages of 6 to 15.

- Is primary education available free of charge to all?

■ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

The Article 5.4 of the Basic Act on Education of Japan stipulates that no tuition fee shall be charged for compulsory education in schools established by the national and local governments.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

■ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

The Article 5.4 of the Basic Act on Education of Japan stipulates that no tuition fee shall be charged for compulsory education in schools established by the national and local governments. As for the upper secondary education stage, Japan takes measures for high school students to receive tuition grants such as the High School Tuition Support Fund of Japan.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☐ Yes ☐ No ☒ Partially

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Junior high school: the lower secondary education is mandatory (i.e. tuition free education) in Japan; the length of its course term is three years, from 12 to 15 years of age.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions:

Labor Standards Act (Act No. 49 of April 7, 1947)

(Minimum Age)

Article 56 (1) Employers shall not employ children until the end of the first 31st of March that occurs on or after the day when they reach the age of 15 years.

(2) Notwithstanding the provisions of the preceding paragraph, outside of school hours, children 13 years of age and above may be employed in occupations in enterprises other than those stipulated in items (i) through (v) of Appended Table No. 1, which involve light labor that is not injurious to their health and welfare, with the permission of the relevant government agency. The same shall apply to children under 13 years of age employed in motion picture production and theatrical performance enterprises.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education,

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- ➔ *Non-differential treatment, including of foreign students*

As for higher education stage in Japan, there is no stipulated condition considered for admission to higher education institution and programmes based on race, colour, sex, language, religion, political or other opinion, national or social origin, economic condition or birth. The Government of Japan supports reductions or waivers of tuition and enrolment fees conducted by each university and provides students financial assistance through the scholarship grant* and loan programmes in higher education.

*The Scholarship Grant Programme is a system expanded from April 1, 2020.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☐ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

The Government of Japan supports reductions or waivers of tuition and enrolment fees conducted by each university and provides students financial assistance through the scholarship grant* and loan programmes in higher education.

*The Scholarship Grant Programme is a system expanded from April 1, 2020.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☐ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☐ Provision of flexible learning pathways
- ☐ Provision of professional training and qualifications
- ☒ Other:

Kominkan (CLC: Community Learning Centre) is established for all residents in each municipality and/or in a given area in order to provide access to education in line with everyday life, and to foster their knowledge and culture in Japan.

Universities in Japan organise the extension programmes for public in order to realise lifelong learning society. The programmes provide direct access to the achievements of studies and researches conducted by each university to the public.

- Please elaborate further on the measures taken:

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2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- Establishment of minimum norms and standards in education
- Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The National Curriculum Standards, which are standards to formulate a proper curriculum in each school, are set in compliance with legislations such as the School Education Act, in order to accomplish quality education with full consideration toward a given level in maintained anywhere in Japan.

Based on the provisions of the School Education Act, each Standards for Establishment of schools at each level of education is established, for instance, facilities such as school sites and school buildings and equipment, and numbers of teachers and numbers of students per class in a primary school and a secondary school, as well as admission capacity and teacher organization at a university.

Textbooks used in compulsory education schools are provided free-of-charge for all students on national treasury. To ensure the quality of the textbooks, textbooks written or edited by private publishing companies, based on the National Curriculum Standards, are required to be reviewed by specialists on each subject. Only those that passed the authorizing process will be used as textbooks in schools.

The School Health and Safety Act (Act No. 56 of 1958) of Japan ensures the provision of the safety of schools, including providing responsibilities to take measures (e.g. implementations of checks for school security environments).

Measures to Counter Bullying is promoted in a comprehensive manner in compliance with the Act Advancing Measures to Prevent Bullying (Act No. 71 of 2013) in Japan.

The Article 11 of the School Education Act strictly prohibits corporal punishments by teachers in Japan.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

The Act on Special Measures concerning Salaries and Other Conditions for Education Personnel of Public Compulsory Education Schools stipulates the payment of a faculty adjustment in addition to monthly salary to teachers of public elementary, junior high and high school teachers and other schools in accordance with local ordinance, based on the standards of 4% of monthly salary, which differs from general civil servants. The entity that establishes the higher-education institution determines conditions for its teachers.

Regarding teacher training, the Government of Japan established its own legal system that requires to complete programmes (i.e. teacher-training programme) in the competent authorities such as higher education institutions approved by Minister of Education, Culture, Sports, Science and Technology, in principle, in order to obtain regular teaching certificate. The Government is also working for maintaining and enhancing of the level of teacher-training programmes by regularly reviewing the contents of teaching in the course.

Regarding in-service teacher training, the Law for Special Regulations Concerning Educational Public Service Personnel stipulates to conduct in-service teacher training for public school teacher by appointers. Prefectural boards of education are to plan and conduct training programs such as training for new teachers, and training for teachers with 10 years experience.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☐ Yes

☐ No

☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☒ Curriculum includes human rights education

☒ Educational and/or extracurricular activities are organized on human rights education

☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

Incorporated Educational Institutions officially authorised by the Government of Japan can establish and run private schools in compliance with the Private School Act and the ministerial ordinances stipulated in the law. The Government of Japan has set up an aid system based on the Law Concerning Support for Private School Promotion, in order to support the private school education activities, in light of the great importance of private institutions in school education.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☐ No ☒

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

In Japan, the opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations.

¹² Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

¹³ See: Article/Paragraph 1(1).

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☐ No ☒

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

☒ Constitutional laws and/or legislation protect the right to education of national minorities

☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue

☐ Curriculum is adapted to national minority needs

☐ Teachers are trained to adapt to national minority needs

☒ Other:

There is no stipulated condition for establishing incorporated schools in terms of on race, colour, sex, language, religion, political or other opinion, national or social origin, economic condition or birth.

- Please provide a brief description of the provisions:

The Article 4.1 of the Basic Act on Education (enacted in 1947, revised in 2006) of Japan stipulates that “the nationals shall all be given equal opportunities to receive education according to their abilities, and shall not be subject to discrimination in education on account of race, creed, sex, social status, economic position, or family origin.” The opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following the provisions and purposes of relevant domestic and international laws and regulations.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

There is no stipulated condition for establishing incorporated schools in terms of on race, colour, sex, language, religion, political or other opinion, national or social origin, economic condition or birth.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states

to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG 4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

In Japan, the opportunity to receive education is assured in an appropriate manner for its nationals and extensively for foreign nationals, following provisions and purposes of relevant domestic and international laws and regulations. Should foreign nationals want the children under their protection to attend public compulsory education schools, the children can attend the schools free of charge and are assured of the opportunities to receive education that is the same as that for Japanese children, including the free provision of textbooks and the system of financial assistance for equal access to education in Japan.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☒ Specific training for educational staff
- ☐ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☒ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

- 1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

N/A

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

N/A

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

N/A

- ☐ Other:

N/A

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

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